

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 616

BY BUSINESS COMMITTEE

AN ACT

RELATING TO ARCHITECTS; AMENDING SECTION 54-306, IDAHO CODE, TO ESTABLISH
AN EXEMPTION TO ALLOW THE FILING OF CERTAIN TECHNICAL SUBMISSIONS; AND
DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 54-306, Idaho Code, be, and the same is hereby
amended to read as follows:

54-306. EXEMPTIONS. Nothing contained in this chapter shall be held or
construed to have any application to, or to prevent or affect, the following:

(1) The practice of engineering or any other profession or trade for
which a license is required under any law of this state, or the practice
of consultants, officers and employees of the United States while engaged
solely in the practice of architecture for said government.

(2) Draftsmen, students, clerks of work, project representatives and
others working under the supervision of those lawfully practicing as archi-
tects under the provisions of this chapter from acting under the instruc-
tion, control or supervision of their supervisors, or to prevent the employ-
ment of clerks of work or inspectors of buildings paid by the owners from act-
ing, if under the control or direction of a licensed architect who has pre-
pared the drawings and specifications for the building.

(3) The rendering of any architectural service required in the erec-
tion, enlargement, alteration or repair of any building, where the building
is to be or is used as a single or multiple family residence not exceeding
three (3) units or three (3) stories in height; or as a farm building; or for
the purpose of outbuildings or auxiliary buildings in connection with the
residential or farm premises.

(4) The rendering of any architectural service required in the erec-
tion, enlargement, alteration or repair of any building that does not in-
volve the public health or safety.

(5) The preparation of shop drawings by persons other than architects
for use in connection with the execution of their work; or the preparation of
drawings of fixtures or other appliances or equipment, or for any work neces-
sary to provide for their installation.

(6) Expert consultation rendered to an architect by a consultant,
whether licensed or not, employed by the architect to consult, advise and
assist as long as the architect approves, adopts and is responsible for the
results of the consultation, advice and assistance.

(7) An intern working under the supervision of a licensed architect,
including the use of the title "architectural intern," as may be established
and limited by board rule.

(8) A certified interior designer signing and sealing a technical sub-
mission covering the scope of certified interior design. Certified interior

1 designers shall have the authority to submit such a technical submission to
2 a state or local governmental entity for the purpose of obtaining any requi-
3 site permit for an interior alteration or construction project. A local gov-
4 ernment shall process such filings in the same manner as it would if such fil-
5 ings were submitted by an architect.

6 (a) Certified interior designers shall not be engaged in the construc-
7 tion of:

8 (i) Services that constitute the practice of professional en-
9 gineering or architecture, except as otherwise provided in this
10 chapter;

11 (ii) Modifications or additions to a building envelope, includ-
12 ing exterior walls, exterior wall claddings, exterior wall open-
13 ings, exterior windows and doors, balconies and similar projec-
14 tions, roof assemblies and rooftop structures, and glass and glaz-
15 ing for exterior use in both vertical and sloped applications in
16 buildings and structures;

17 (iii) Changes of building use to occupancies not already allowed
18 by the current building or structure or changes of building use to
19 occupancies of a greater hazard;

20 (iv) Modifications or additions to the construction classifi-
21 cation of a building or structure according to the international
22 building code;

23 (v) Modifications or additions to the structural system of
24 a building, including changing the building's dead load on the
25 structural system;

26 (vi) Material changes to the mechanical, plumbing, heating, air
27 conditioning, ventilation, electrical, low voltage, elevators
28 and conveying, fire protection, or fire alarm systems;

29 (vii) Design of or modifications to an exit stair or exit dis-
30 charge portion of a means of egress system; or

31 (viii) Construction that materially affects life safety systems
32 pertaining to fire safety of structural elements or the fire pro-
33 tection of structural elements, smoke evacuation and comparten-
34 talization systems, or fire-rated vertical shafts in multi-story
35 structures.

36 (b) A certified interior designer shall, as a condition of filing tech-
37 nical submissions for the purpose of obtaining approval for a building
38 permit, provide to the responsible building official of the jurisdic-
39 tion proof of the interior designer's professional liability insurance
40 coverage that is in force.

41 (c) As used in this subsection, "certified interior designer" means a
42 person who:

43 (i) Holds an active certified interior designer certification
44 from the board. Such certification shall require that the inte-
45 rior designer:

46 1. Has met the education and experience requirements of, and
47 has subsequently passed, the qualification examination pro-
48 mulgated by the council for interior design qualification or
49 its successor organization; and

2. Maintains active certification with the council for interior design qualification or its successor organization; and

(ii) Engages in:

1. Consultation, study, design analysis, drawing, space planning, and specification for nonstructural or nonseismic interior construction and alteration projects in compliance with applicable building design and construction accessibility, fire, life safety, and energy codes, standards, regulations, and guidelines;

2. Preparing and submitting technical submissions for the purpose of obtaining approval for a building permit as provided by law for nonstructural or nonseismic interior construction, materials, finishes, space planning, furnishings, fixtures, equipment, lighting, and reflected ceiling plans;

3. Designing for fabrication nonstructural elements within and surrounding interior spaces of buildings;

4. Administration of design construction and contract documents, as the clients' agent, relating to the functions described in this subparagraph, and collaboration with specialty consultants and licensed practitioners in other areas of technical expertise; or

5. Creation or alteration of paths of egress.

(d) As used in this subsection, "nonstructural or nonseismic" means interior elements or components that are not load-bearing, do not assist in the seismic design, and do not require structural computations for a building. Common nonstructural or nonseismic elements or components include ceiling and partition systems that employ normal and typical bracing conventions and are not part of the structural integrity of the building.

(e) The board is authorized to promulgate rules, subject to legislative approval, regarding the interior design certification provided for pursuant to this subsection.

(f) The interior design certification provided for pursuant to this subsection shall not be required for interior designers who do not engage in the practice of signing, sealing, and submitting technical submissions as described in this subsection.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.